



CHAPTER 26.

An Act to extend the powers of the Charity Commissioners as respects fuel allotments.

[13th July 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The powers of the Charity Commissioners under section two of the Charitable Trusts Act, 1860, as amended by any subsequent enactment, to make an order for the establishment of a scheme for the administration of a charity shall include power to make an order for the establishment of a scheme for the administration of any fuel allotment.

*Extension
of powers
of Charity
Commis-
sioners.
23 & 24 Vict.
c. 136.*

(2) Notwithstanding anything in section nineteen of the Commons Act, 1876, any such scheme may provide—

*39 & 40 Vict.
c. 56.*

- (a) for the sale or letting of the allotment or any part thereof, for the discharge of the land sold or let from any restrictions as to the use thereof imposed by or under any enactment relating to inclosure and for the application of the sums payable to the trustees of the allotment in respect of the sale or lease; or
- (b) for the exchange of the allotment or any part thereof for other land, for the discharge as aforesaid of the land given in exchange by the said

trustees, and for the application of any money payable to the said trustees for equality of exchange; or

(c) for the use of the allotment or any part thereof for any purposes specified in the scheme.

(3) The powers conferred on the said Commissioners by this section in respect of any such fuel allotment as is mentioned in section nineteen of the Commons Act, 1876, shall be in lieu of the powers conferred upon them by the provisos to that section, and accordingly those provisos are hereby repealed.

(4) In this section the expression "fuel allotment" means any land which, by or under any enactment relating to inclosure, is vested in trustees upon trust that the land or the rents and profits thereof shall be used for the purpose of providing poor persons with fuel.

Short title,
citation and
extent.

2.—(1) This Act may be cited as the Charities (Fuel Allotments) Act, 1939, and may be cited together with the Charitable Trusts Acts, 1853 to 1925, as the Charitable Trusts Acts, 1853 to 1939.

(2) This Act shall not extend to Scotland or Northern Ireland.

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